Attachment 1 Performance Work Statement and QASP
Confined Space Assessment
BARC, Beltsville MD

GENERAL INFORMATION

1. Background: BARC contains numerous confined spaces across its 6,400-acre research campus, including utility tunnels, wastewater systems, tanks, silos, pits, and agricultural structures. The BARC campus includes but is not limited to; the Beltsville Agricultural Research Center East and West Campuses, North and South Farms, the U.S. National Arboretum (USNA), and the Beltsville Human Nutrition Research Center (BHNRC). Many of these spaces present atmospheric, engulfment, mechanical, and structural hazards. To maintain a compliant and effective confined space program, USDA, ARS, BARC, requires an external assessment of its confined space inventory, equipment, staff qualifications, and compliance program.

2. Scope of Work:

2.1. The Prime Contractor shall provide all personnel, transportation, and supervision necessary to provide a one-time, comprehensive evaluation of all confined spaces to ensure compliance with OSHA, NFPA, and USDA requirements.

2.2. The contractor shall perform all work described in this Performance Work Statement in accordance with all applicable Federal, State, and local laws, regulations, and codes.

2.3. This is a performance-based requirement, the contractor shall perform to the requirements and standards as established by this PWS. The labor mix of employees to perform this contract remains the discretion of the Contractor for all services.

2.4. All in scope requirements are Firm Fixed Price. This is not a Time and Materials requirement.

3. Period of Performance: 365 calendar days/one year.

4. Invoicing and Payment:

4.1. The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP).

4.2. All invoices shall be submitted via the electronic Invoice Processing Platform. This is a mandatory requirement initiated by the U.S. Department of Treasury. More information is available at https://www.ipp.gov. The Department of Treasury is the point of contact for all IPP Collector account inquiries.

4.3. Payment is in arrears pursuant to the clause at FAR 52.212-4. Note FAR 52.212-4 (i)(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.
4.4. Payment will not be made for service in advance of delivery.
4.5. The invoice cycle shall be no less than monthly.
4.6. Advance invoice approval is not required, as required approval tiers exist in IPP.

5. Definitions:

5.1. CLIN – Contract Line Item, numbered. Established in the solicitation schedule, will start with "0001."
5.2. Contracting Officer's Representative – USDA Employee Location representative appointed by the Contracting Officer to monitor, evaluate, and communicate to the CO the Contractor's performance in complying with contract requirements in an efficient and timely manner.
5.3. Calendar Days - Every single day on the calendar (12 AM to 11:59 PM), including weekends, holidays, and non-working days.
5.4. 'Business Days' – Standard business days 8AM to 5PM Eastern with holiday exceptions as noted:
Listed below are official Government holidays:
New Year's Day January 1*
Martin L. King Birthday Third Monday in January
President's Day Third Monday in February
Memorial Day Last Monday in May
Juneteenth As Indicated
Independence Day July 4*
Labor Day First Monday in September
Columbus Day Second Monday in October
Veterans Day November 11*
Thanksgiving Day Fourth Thursday in November
Christmas Day December 25*
Or when the USDA-ARS facility is closed due to local or national emergencies, administrative closings, or similar government-directed facility closings
*In accordance with Federal regulations, if these holidays fall on a Saturday, the holiday will be observed on Friday, if Sunday, holiday will be observed on Monday.

CONTRACTOR PERFORMANCE REQUIREMENTS

6. Technical Requirements/Tasks

6. 1. Create a Final Comprehensive Report, integrating findings from section 2.1 – 2.4.

6. 2. The Contractor shall provide:

- Confined Space Inventory Report.
- Equipment Inspection Report.
- Personnel Qualification Assessment.

- BARC Confined Space Program Compliance Assessment.
- Final Comprehensive Report.

7. <u>Timeline:</u>

7. 1. Kickoff meeting with COR and designated facilities staff: Within 10 business days after contract award.

7. 2. Initial Assessment Schedule and Site Access Plan meeting: Within 10 business days after kickoff meeting.

7. 3. Confined Space Inventory and Assessment Completion: Due to COR within 120 business days after Initial Assessment Schedule and Site Access Plan meeting.

7. 4.

- **Draft Confined Space Inventory Report:**
- **Draft Equipment Inspection Report:**
- **Draft Personnel Qualification Assessment:**
- **Draft Confined Space Program Compliance Assessment:**
- **Draft Final Compressive Report:**

Due to COR within 15 business days after completion of Confined Space Inventory and Assessment.

7. 5. COR Draft Document Review: COR provides feedback and comments to the Contractor within 10 business days after receiving the final draft documents listed in 6.2.

7. 6. Final Comprehensive Report (all deliverables combined): Due to the COR within 10 business days after completion of COR Draft Document Review.

8. <u>Expectations:</u>

8. 1. A preliminary confined space inventory has been provided, but the total number of confined spaces across BARC could be greater or less than what is listed.

8. 2. Original blueprints and maps of campuses and buildings may be available but are limited.

8. 3. Total numbers of buildings/worksites to be inspected are estimated to be around 300, this number could be greater or less than what is listed.

8. 4. Total number of confined spaces to be assessed is estimated to be around 86, this number could be greater or less than what is listed.

8. 5. There are around ten atmospheric monitors, two retrieval systems, two ventilation units, and two rescue devices that require inspection. This number could be greater or less than what is listed.

8. 6. There will be one confined space entry permits to be inspected as part of the program evaluation.

8. 7. The COR and/or designated facilities staff will escort the contractor throughout the assessment. Contract will travel between facilities unescorted as these will be public access areas.

8. 8. Contractor is expected to assign a team to report onsite to perform the assessment.

8. 9. Assessment Team schedule will be coordinated with the COR.

8. 10. Assessment Team will report to Security Services each day while at BARC facilities to check-in, unless the team acquires security credentialing to obtain PIV/CAC/LincPass Cards.

9. Personnel Requirements: The contractor shall provide service personnel with OSHA and NFPA confined space standard expertise and experience. The service personnel shall be able to evaluate and integrate USDA policies and procedures into this requirement.

10. Privity of Contract:

10. 1. All contractor personnel shall be accountable solely to the Prime Contractor, who, in turn, is responsible for all aspects of contract performance.

10. 2. The USDA is not responsible for, nor will be directly involved in, any Prime Contractor personnel related actions, such as hiring evaluations, position interviews, resume reviews, performance evaluation of individuals, contacting personnel at home, etc.

10. 3. Any requests for the USDA to manage or supervise contract personnel, beyond security escort requirements below, on behalf of the Prime Contractor will be denied.

11. Security Requirements: All contractor personnel shall complete credentialing through the Security Services office to acquire a LincPass.

12. PPE: No PPE is provided by BARC. The contractor shall arrive on site with the PPE appropriate to complete the tasks designated in this Performance Work Statement.

13. Insurance Requirements:

13. 1. Workers' Compensation and Employer's Liability. The Contractor is required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they must be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000 must be required, except in States with exclusive or monopolistic funds that do not permit worker's compensation to be written by private carriers.

13. 2. General Liability. The Contractor must have bodily injury liability insurance coverage written on a comprehensive form of policy of at least $500,000 per occurrence.

13. 3. Automobile Liability. The Contractor must have automobile liability insurance written on a comprehensive form of policy. The policy must provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States must provide coverage of at least

$200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage or loss.

13. 4. Aircraft Public and Passenger Liability. When aircraft are used in connection with performing the contract, the Contractor must have aircraft public and passenger liability insurance. Coverage must be at least $200,000 per person and $500,000 per occurrence for bodily injury, other than passenger injury. Coverage for passenger injury must be at least $200,000 multiplied by the number of seats or passengers, whichever is greater.

13. 5. Proof of insurance shall be submitted to the COR and Contracting Officer pursuant to the clause at FAR 52.228-5 within 5 calendar days of award.

14. Confined Space Inventory:

14. 1. Conduct a full survey to verify, identify, and classify all confined spaces provided in the preliminary confined space inventory, to include any of those not previously discovered.

14. 2. Classify each space as permit-required or non-permit.

14. 3. Document hazards, configurations, access points, and environmental conditions.

14. 4. Coordinate with the COR and designated facilities staff to conduct assessments.

14. 5. Contractor may be expected to enter confined spaces during assessments. Some spaces may be permit-required.

14. 6. Contractor Deliverable: Confined Space Inventory Report.

15. Equipment Inspection:

15. 1. Inspect all confined space entry and rescue equipment, including atmospheric monitors, ventilation equipment, retrieval systems, personal protective equipment (PPE), and communication devices.

15. 2. Verify equipment functionality.

15. 3. Identify deficiencies, calibration issues, and replacement needs.

15. 4. Contractor Deliverable: Equipment Inspection Report.

16. Personnel Qualifications:

16. 1. Review the qualifications, certifications, and training records of all BARC staff who perform confined space entry, attendant, rescue, and supervisory duties.

16. 2. Evaluate compliance with OSHA 1910.146 and USDA/ARS training requirements.

16. 3. Identify gaps in training, expired certifications, or missing competencies.

16. 4. Contractor Deliverable: Personnel Qualification Assessment.

17. BARC Confined Space Program Compliance:

17. 1. Review and evaluate existing confined space entry permits, standard operating procedures, and emergency action plan documentation.

17. 2. Contractor Deliverable: BARC Confined Space Program Compliance Assessment.

18. Final Comprehensive Report:

18. 1. Contractor shall compile the Confined Space Inventory, Equipment Inspection, Personnel Qualifications, and BARC Confined Space Program Compliance reports and assessments into a single Final Comprehensive Report.

18. 2. In the Final Comprehensive Report, the Contractor lists corrective actions needed to maintain or obtain confined space compliance per facility: (BARC, USNA, BHNRC, exct…). The lists of corrective actions should be bulletized at the end of each report and assessment.

QUALITY CONTROL

19. Quality Assurance Surveillance Plan (QASP): The Government shall establish a QASP as a means of evaluating whether the Contractor is meeting the performance standards/quality levels identified in the PWS to ensure that the government pays only for the level of services received.

Tasks	**Standards**	**Acceptable Quality Level (AQL)**
Technical Requirements and Tasks identified in Section 6-18	*Standards as established in Technical requirements and tasks identified in Section 6-18.*	*100%*